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ASIA OVERVIEW

Human rights fared poorly in Asia during the year, and nowhere as badly as in East Timor. No outside country and no institution, regional or global, put the necessary pressure on Indonesia to stop the deadly violence of its proxy militias until a scorched earth campaign in September left the soon-to-be-independent country a smoking ruin and virtually its entire population uprooted. The principle of accountability for crimes against humanity was strengthened by United Nations Secretary-General Kofi Annan's establishment in September of an international commission of inquiry on East Timor. The principle was undermined, however, by Cambodian Premier Hun Sen's refusal for months to work with the U.N. to bring senior Khmer Rouge leaders to justice, although by late October, it appeared that his position might change.

Nationalist sentiment, inflamed by different factors in different countries, produced an anti-Western backlash across the region that had negative repercussions for human rights.

The fundamental civil rights of expression, assembly, and association suffered severe setbacks during the year in Pakistan, China, Burma, Malaysia, Singapore, and Cambodia, and judicial independence took a battering in Hong Kong and Malaysia. Religious persecution was a major issue in China, India, and Vietnam as well as elsewhere in the region.

Government action and inaction fueled communal and caste conflict in India, while communal violence, exacerbated by if not initiated by government action, flared as well in Indonesia. Internal armed conflicts in Sri Lanka, Afghanistan, Indonesia, and Burma produced human rights violations by all parties involved and led to serious problems of protection for refugees and internally displaced persons.

Governments in Pakistan and Afghanistan failed spectacularly to uphold women's rights, and violence against women was a pervasive problem in the region. The Indonesian government made no effort to further investigate the rapes of ethnic Chinese women in May 1998, and trafficking of women continued into or out of most of the countries of the region.

Corruption remained a major obstacle to respect for human rights, with cronyism of past or present leaders a national political concern in Malaysia, Indonesia, the Philippines, China, and Pakistan.

On the positive side, economic recovery and democratization made steady progress. The more open countries in the region, Thailand and South Korea, recovered most rapidly from the effects of the 1997-98 economic collapse, although key structural reforms were not implemented at year's end. In June, Indonesia successfully held its first free national election in forty-four years, but the triumph was marred by the continuing role of the army in political life, the persistence of "money politics" or influence-buying, and the failure of any politician to address the country's political and economic difficulties.

Regional governmental organizations played no role in human rights protection during the year. The Association of Southeast Asia Nations (ASEAN) seemed powerless and rudderless, in part because of the political and economic uncertainties in Indonesia, its largest member. The Asia-Pacific Economic

Cooperation (APEC) summit in New Zealand in September ended up being a useful forum for discussion of East Timor but was otherwise seen by participants as lacking purpose or direction.

Human Rights Developments

The crisis in East Timor underscored the failure of "preventive diplomacy" and the unwillingness of the international community to take steps early on, such as exerting economic pressure or suspending military cooperation, that might have persuaded the Indonesian army to sever links with local militias, rendering international military intervention unnecessary (see Indonesia/East Timor chapter). The crisis highlighted the inability of key countries, such as the U.S. and members of the European Union, to focus on more than one crisis at a time, since East Timor was unfolding at a time when Kosovo had the near-exclusive attention of senior policy-makers in those countries. (Among Asian human rights activists, the attention to Kosovo left the impression that human rights disasters in Europe would always generate more attention than catastrophes farther afield.) The East Timor crisis also underscored Japan's unwillingness to link aid to human rights.

Once the scale of the post-referendum violence became apparent, the U.N. moved relatively quickly to force Indonesia to accept an international force, with full support from governments in the region, including China. But Asian support for and participation in the International Forces in East Timor (Interfet) was one thing; support for the notion of universal jurisdiction or international accountability for crimes against humanity was quite another. On September 27 in Geneva, in a special session of the U.N. Commission on Human Rights, Asian delegates as a bloc rejected or abstained from voting on a resolution calling on the U.N. Secretary-General to establish an international commission of inquiry for East Timor. They instead supported Indonesia's contention that it could do its own investigation without "foreign intervention," through the Indonesian National Commission on Human Rights. The argument was similar to that used by Hun Sen in rejecting an international tribunal for Khmer Rouge leaders, insisting that Cambodian courts could do the job.

The Asian governments' vote may have been linked in part to their unhappiness with how the special session was convened. But other factors may have been just as important. Of the governments concerned, Sri Lanka, Japan, Korea, Pakistan, and China are all countries that have unanswered questions of accountability for past abuses. Sri Lanka, India, and the Philippines, all of whom voted with Indonesia, also have national human rights commissions that are seen by their respective governments as sufficient to address ongoing abuses, without interference from abroad.

A final factor in the vote may also have been rising nationalism. Nationalist anger against outside intervention on rights issues was evident in Malaysia, in response to the November 1998 remarks in Kuala Lumpur by U.S. Vice President Al Gore in support of the political opposition; in China, in reaction to the May 7 bombing of the Chinese embassy in Belgrade; in India and Pakistan, in response to a flare-up of the Kashmir conflict from May to July; in Indonesia, in response to the U.N. role in East Timor beginning in June; and throughout the region in response to NATO intervention in Kosovo.

The freedoms of expression, association, and assembly were under particular assault in Pakistan, China, Malaysia, and Burma during the year but suffered elsewhere as well. Burma's ruling State Peace and Development Council continued to arrest supporters of the opposition National League for Democracy. The government of Nawaz Sharif in Pakistan launched a frontal attack on nongovernmental organizations (NGOs) in May, depriving thousands of legal status, and then Sharif himself was overthrown in a military coup in October that led to the imposition of martial law. In China a series of sensitive anniversaries—of the Tibetan uprising on March 10, 1959, the Tiananmen Square crackdown on June 4, 1989, and the founding of the People's Republic on October 1, 1949—led authorities to tighten controls and increased intolerance of independent political activity. Singaporean authorities continued to ban outdoor speeches and rallies, arresting opposition politician Chee Soon Juan in January for making a lunch-hour address to a crowd of businessmen, and imprisoning him for twelve days in February after he refused to pay the criminal fine levied against him for the January speech. The other veteran opposition leader in Singapore, Joshua Jeyaretnam, faced the prospect of bankruptcy as a result of punitive damages, awards, and costs assessed in defamation actions brought by Prime Minister Goh and others. The actions related to statements made by Jeyaretnam in an election eve political rally in 1997. In Malaysia, Deputy Prime Minister Anwar Ibrahim's first trial

ended in April with a six-year sentence on corruption charges; a second trial began in June. Both trials seemed designed to end Anwar's political career and the threat he posed to his former mentor, Prime Minister Mahathir, as well as to stifle calls for reform.

The integrity and independence of courts were at issue in many countries of the region during the year. In Malaysia, Far Eastern Economic Review journalist Murray Hiebert was jailed in September on charges of "scandalizing the court," for an article he wrote in 1997 noting the speed with which a lawsuit involving the son of a prominent judge moved through the court system. He was released on October 11. It was the first time any journalist in Malaysia had been detained since 1957. In Cambodia, pressure from the U.N. and major donor governments on Hun Sen to allow an international tribunal to try senior Khmer Rouge leaders was premised on the assumption that Cambodian courts were still too weak and politicized to do the job properly. In China, legal reform continued to make slow headway, but "verdict first, trial second" remained the operative rule for political cases. In the Special Administrative Region (SAR) of Hong Kong, the traditional independence of the court system was placed in jeopardy in May after SAR Chief Executive Tung Chee-hwa asked Beijing to intervene to overrule a decision by Hong Kong's Court of Final Appeal that he opposed. In Pakistan, the government set up new military courts in late 1998 to try suspected "terrorists" and when these were challenged, simply replaced them in May with anti-terrorist courts, which still eliminated most basic protections for defendants.

Caste, communal, and ethnic violence continued to plague the region. In India, private armies supported by upper-caste landlords attacked members of the Dalit or "untouchable" community with impunity; a series of particularly vicious attacks took place in Bihar in from January to April, part of an ongoing cycle of retaliatory violence between these armies and Maoist guerrillas. The coming to power of a Hindu nationalist government also encouraged many right wing Hindu groups to attack religious minorities, often with local police failing to intervene.

A series of communal riots throughout Indonesia in late November and December 1998 and January 1999 were widely believed to have been instigated by army-linked provocateurs. Whether the riots were provoked or not, government intervention inevitably made things worse. Conflict between Muslims and Christians, rooted in political and economic causes, raged unchecked in the central and southeastern Moluccan islands at the end of the year. Many of the deaths were caused by security forces opening fire to stop communal fighting, but local people alleged that different branches of the armed forces took one side or the other, rather than remaining neutral. No progress was made during the year in investigating the deadly May 1998 riots in Jakarta that were directed against ethnic Chinese. In Kashmir, the conflict took on a communal aspect as it spread beyond the Kashmir valley, with the Indian government deploying former army servicemen, largely Hindu, to assist the army in counterinsurgency operations in the Jammu region. These village defense forces were responsible for abuses against local Muslim villagers.

Internal armed conflict produced grave human rights violations across the region, with abuses against civilians often being carried out by paramilitary groups working in unofficial collaboration with government armed forces. Rebel groups were also responsible for abuses. In Kashmir, the incursion into Indian-held Kashmir by Pakistani-backed militants in May and the resultant fighting between India and Pakistan diverted attention from a pattern of systematic abuse in Kashmir by Indian security forces and former militants working with them called "renegades," but those abuses continued. Militias organized, trained, and equipped by the Indonesian army were the primary agents of violence against suspected supporters of independence in East Timor; attacks by pro-independence groups on non-Timorese civilians took place in late 1998 and early 1999, but from February onwards, the violence was almost all on the other side. In Sri Lanka, several paramilitary Tamil groups worked with the Sri Lankan army to try and crush the insurgency led by the Liberation Tigers of Tamil Eelam (LTTE) in the north and east of the country; the LTTE was also responsible for grave abuses, including recruitment of child soldiers. In Burma, the ongoing campaign by the Burmese army or Tatmadaw to pacify areas held by ethnic insurgent armies resulted in large-scale forced population removals and other abuses; there were also some reports of executions by the insurgents, including the Karen National Union, during the year. In Afghanistan, both the Taliban forces and the United Front were responsible for indiscriminate bombings of civilian areas. The Taliban also forcibly relocated thousands of civilians and detained an unknown number during a mid-year offensive.

The various conflicts in the region produced huge outflows of refugees and internally displaced persons, with critical protection problems emerging as a result. In East Timor, one issue was how to safely repatriate East Timorese who had been forcibly expelled into Indonesian West Timor and who remained under the control of the militias who had forced them out (see chapter on Refugees).

In Thailand and Malaysia, the governments' failure to accord refugee status to Burmese and Indonesians respectively led to an ever present danger that people with a genuine fear of persecution could be repatriated against their will and in violation of international law. The Malaysian government continued to deny UNHCR permission to visit immigration detention camps where some refugees were believed detained. In Bangladesh, the government was eager to see the repatriation of some 21,000 remaining ethnic Rohingya refugees originally from Arakan, in western Burma, but not all wished to return. For those who did, the Burmese government continued to place obstacles in the way of repatriation. Tens of thousands of Indonesians were displaced by political or communal conflicts in Aceh, West Kalimantan, and the Moluccas; the Indonesian government restricted access by international humanitarian agencies to the camps, fearing that their presence would be exploited for political reasons by parties to the conflict. The Sri Lankan government blocked delivery of humanitarian relief supplies to internally displaced persons in northern Sri Lanka in June and July, leading to international protests. In October 1998, UNHCR established a presence in Thailand along the Thai-Burmese border where camps housed some one hundred thousand refugees. The procedures by which new arrivals from Burma would be screened for admission to the camps remained unclear; local groups were concerned that until those procedures were clarified, there was a possibility that genuine refugees could be sent back. UNHCR sought to cease international protection for Cambodian refugees remaining in Thailand and send them back to Cambodia, based on what it viewed as an improved political situation. After protests by human rights groups, UNHCR said the status of Cambodians would be further reviewed. In the beginning of the year, the Thai government said it would consider signing the U.N. Refugee Convention, but as of this writing, it had taken no action.

Corruption remained a huge issue. In Indonesia, a major bank siphoned off U.S.\$70 million to officials of the Golkar ruling party, including people closely linked to President Habibie. In February, a taped conversation between President Habibie and Attorney General Andi Ghalib revealed that a government investigation into former president Soeharto's wealth was a sham; Ghalib himself became the target of a bribery inquiry and was forced to step down on June 14 pending investigation. The investigation into the Soeharto wealth was called off in October. In April former Pakistani prime minister Benazir Bhutto was convicted in absentia of taking bribes; her husband remained in a Pakistani jail on corruption charges. In Malaysia Anwar Ibrahim was tried on corruption charges, but it was he who in 1998 had raised concerns about corruption and cronyism in Mahathir's inner circle. Newspaper articles accusing high-ranking officials of corruption led to systematic harassment of journalists and publishers in Pakistan. In August, newspapers in the Philippines also complained of government pressure after reporting on corruption and cronyism in the administration of President Joseph Estrada. In Cambodia, the Cambodian Mine Action Center (CMAC), a national institution, lost funding after news broke that CMAC officers had misappropriated hundreds of thousands of dollars. In Vietnam corruption continued largely unabated, despite the high-profile trial in August of seventy-seven people in what became known as the Minh Phung Epcoc case. Corruption of police and immigration officials facilitated trafficking of women and illegal migration across the region.

Defending Human Rights

Where they were allowed to exist and in some cases, even where they were not, Asian NGOs vigorously defended human rights. Human rights NGOs in Thailand and Malaysia worked with their Indonesian counterparts to protest abuses in Aceh. The Asia Monitor Resource Center, a Hong Kong-based NGO, documented abuses of worker rights in Vietnam and China. Advocacy on behalf of migrant workers continued to be a priority for NGOs in the region. A project to better enforce the fundamental freedoms of expression, assembly, and association in Asia involved human rights organizations from Hong Kong, Sri Lanka, Indonesia, the Philippines, Thailand, and Cambodia. Human rights in Burma and East Timor continued to be of major concern to NGOs across Southeast Asia; they often worked collaboratively to document abuses and raise concerns with ASEAN governments. When Malaysian human rights activists were arrested in September, organizations across Asia rallied to their support. Extensive access to the Internet by Asian NGOs facilitated not only

regional campaigns of this kind but also international advocacy efforts on Asian issues. When Falun Gong was banned, its members in China bombarded western human rights groups and governments with e-mail messages pleading for help.

Human rights monitoring continued to be a risky job, however. Neelan Tiruchelvam, a Sri Lankan recognized internationally as a leader of the human rights movement, was assassinated in Colombo in July by a suicide bomber believed to be linked to the LTTE. Two staff members of the Cambodian human rights organization Cambodian League for the Promotion and Defense of Human Rights (LICADHO) were arrested in December 1998 and accused of inciting a demonstration against toxic waste dumping in the port city of Sihanoukville. The two LICADHO staff were detained for one month, released pending trial, then put on trial in July. They were eventually acquitted of all charges. The office of the leading East Timorese human rights organization, Yayasan Hak, was attacked by militias on September 5. The staff were evacuated, and then the building was torched, destroying valuable evidence that might have been used in prosecutions of Indonesian officers.

In several countries including Indonesia, Sri Lanka, the Philippines, and India, national human rights commissions functioned reasonably independently and were helpful in getting certain human rights issues onto the national agenda. The Indian commission succeeded in getting compensation paid to victims of police torture. But in Indonesia, the government used the national commission as a way to deflect international scrutiny of its role in East Timor. Malaysia and Thailand both passed legislation during the year mandating the establishment of national human rights commissions, and Korea was also planning to create one.

No human rights organizations were permitted to function in North Korea, Vietnam, Burma, or Singapore. In China, legal aid organizations and a hotline for women operated freely, but any organized advocacy effort on behalf of dissidents, religious activists, Tibetan nationalists, or workers was crushed.

The Role of the International Community

The international community was moved by conflicting impulses during the year. On East Timor, the impulse to stop the destruction was restrained by a concern voiced by several U.N. Security Council members that too much pressure on Indonesia could undercut Indonesia's fragile democratization process. (Indonesian pro-democracy activists argued the opposite, that only accountability for senior officers could help reduce the role of the military.) The terror in East Timor did, however, prompt an unusual mobilization of military and material resources, with Japan covering almost half the costs of an international force led by Australia, and Malaysia, Thailand, Singapore, the Philippines, Korea, Bangladesh, China, and New Zealand among the countries of the region contributing personnel.

Despite a crackdown that steadily increased in China during the year, the G-7 countries gave up trying to pressure the government to make improvements and put all their effort into human rights dialogues and seminars on the rule of law which, while harmless, produced few, if any, tangible results.

In South Asia, Western countries put concern over human rights aside as they worried about how to halt the escalation of conflict between India and Pakistan over Kashmir, not recognizing the role that human rights abuse by Indian security forces and separatist militants had played in fueling the conflict to begin with.

The region's economic recovery was a top priority for all donors, but there was a noticeable increase in attention toward governance and support of civil society.

International Financial Institutions

The World Bank engaged in more consultation with local groups than ever before in countries that had active NGO networks. Where freedom of association was tightly restricted, as in China, "consultation" tended to be a much more pro forma process. The Bank launched a "comprehensive development framework" initiative to enhance the input of civil society in development activities, but its only pilot project in the region was in Vietnam, where the emphasis was on poverty reduction. The World Bank shied away from giving explicit support to NGOs in China trying to expose corruption. But it

energetically protested the crackdown on NGOs and journalists in Pakistan, convening a special meeting of ambassadors in Pakistan with NGO participation, putting off a planned consultative group donor meeting, and appealing for the release of Najam Sethi, a jailed journalist who campaigned against corruption.

In Indonesia, the World Bank consulted with a wide range of NGOs and political opposition leaders as it decided how to handle disbursement of loans in the pre- and post-June election period. In September, it held up loans to the Habibie government because of a major corruption scandal. The International Monetary Fund (IMF) and the World Bank also linked the delay in disbursements to the violence in East Timor and Indonesia's failure to meet its commitments under the May 5, 1999 agreement (see Indonesia/East Timor chapter).

The World Bank's inspection panel was charged with doing an independent assessment of a highly controversial \$40 million resettlement project in a traditionally Tibetan ethnic area of China, and for the first time, its assessment was a precondition for disbursement of project funds. Its report was due to be delivered to the World Bank's board in late November or early December.

Under Congressional mandate, the U.S. Treasury Department established an outside advisory committee to examine the impact of IMF programs, including social safety net funding, greater transparency in IMF operations, and the impact of the IMF on core labor rights standards. The committee's initial meetings in early September focused on procedural matters; it included representatives from the human rights and environmental communities as well as business and labor groups.

United Nations

The United Nations made useful contributions to human rights in East Timor, Cambodia, Indonesia, Vietnam, and Afghanistan.

Despite controversy over whether the U.N. could have done more to protect the people of East Timor from the terror unleashed by militias in September, there is no question that the U.N. Mission in East Timor (UNAMET) acted with professionalism and integrity as it organized a referendum in record time under abominable conditions and ensured the safe evacuation of the more than one thousand displaced people who had taken shelter in its compound. The protection failure lay more with member states who failed to exert the pressure on Indonesia that they could have earlier in the year. In September the Security Council authorized the sending of an Australian-led international force to East Timor to halt Indonesian army-backed violence, restore order, and provide humanitarian aid to hundreds of thousands of displaced people. A special session of the U.N. Commission on Human Rights also met in September and passed a resolution calling on the secretary-general to set up an international commission of inquiry into violations of international humanitarian law in East Timor. The Office of the High Commissioner for Human Rights opened a small office in Jakarta.

The Special Rapporteur on Violence Against Women visited Jakarta and East Timor in November 1998; she was followed in February by the U.N. Working Group on Arbitrary Detention. In neither case were the visitors allowed to visit Aceh or Irian Jaya.

Following up on a November 1998 mission, the U.N. sent a second group of experts to Cambodia in August 1999 to assess options for bringing the Khmer Rouge leadership to justice through a tribunal that met international standards. The U.N. was initially rebuffed by Premier Hun Sen, however. The Phnom Penh field office of the Office of the High Commissioner for Human Rights had its mandate extended for another year, but in September Hun Sen called for the closure of the office of the personal representative of the secretary-general in Cambodia at the end of its mandate in January 2000.

A hard-hitting report on Vietnam released in March by Abdelfattah Amor, the special rapporteur on religious intolerance prompted an angry response from the Vietnamese government.

A resolution by the U.N. Commission on Human Rights and statements by the U.N. Secretary-General in April and August, respectively, condemned widespread violations of human rights and humanitarian

law in Afghanistan. Burma, also the subject of a UNCHR resolution critical of its rights practices, continued to block access by U.N. Special Rapporteur Rajsoomer Lallah.

U.N. High Commissioner for Human Rights Mary Robinson's visit to China and Tibet in September 1998 led to no new initiatives, and even an assessment mission in 1999 designed to press for ratification of the two U.N. covenants China had signed was not productive.

The U.N. High Commission for Refugees (UNHCR) expanded its role in some areas, including along the Thai-Burma border. It continued to be involved in some of the region's protracted refugee situations, such as in Nepal, but was sometimes insufficiently proactive in identifying possible solutions that respected refugee rights and wishes. UNHCR continued to work with urban refugees in India, Thailand, and Malaysia. Detention of refugees on charges of illegal entry remained a problem in many countries as governments made no distinction between refugees and undocumented migrants. UNHCR often had no access to these detainees; Malaysia was a case in point.

United States

United States policy in the region was once again pulled in different directions by political and economic imperatives. Political interests themselves led to contradictory initiatives, with security concerns sometimes at odds with the desire to strengthen civil society and bolster democratization efforts. With the exception of the India-Pakistan conflict and the East Timor crisis, Asia lost out to the Balkans in the administration's list of priorities.

The White House was outspoken in opposing the crackdown on NGOs and journalists in Pakistan, and this coincided with its policy of increased pressure on the Sharif government, driven largely by nonproliferation and anti-terrorism concerns; it condemned, however, the coup against Sharif in October. The White House, State Department, and Pentagon also used public and private diplomacy throughout the East Timor crisis. Unfortunately, all three drew the line at conditioning economic and military assistance on an end to militia violence until the scorched earth campaign began, by which time mere threats were no longer useful.

There was no change in the administration's tough policy on Burma, and a July report by the U.S. embassy in Rangoon documented for the first time that U.S. sanctions were having a significant impact on foreign investment and the overall economy even if they were not producing the desired political objectives.

The Administration took the lead in carving out benchmarks for a U.N.-supported "mixed tribunal" for Khmer Rouge leaders and pressed for the release of two staff members of the human rights organization LICADHO as a key test of the Cambodian government's attitude towards civil society. In Vietnam, both the embassy and the State Department gave top priority to finalizing a trade agreement, although religious freedom issues were high on the agenda.

China represented the administration's most significant policy failure. The administration badly handled opportunities to exert serious pressure on Beijing, including during the U.N. Commission on Human Rights in Geneva, Premier Zhu's visit to the U.S. in April, and President Clinton's contacts with Jiang Zemin throughout the year. China's deft manipulation of the crisis in U.S.-China relations following the bombing of the Belgrade embassy in May put the administration at a disadvantage and left its dialogue strategy in shambles. Talks on China's World Trade Organization (WTO) entry were making little progress towards the end of October.

European Union

While the European Union (E.U.) expressed concern about human rights violations in Afghanistan, Burma, India, Malaysia, Pakistan, and Sri Lanka, it took a less active stance with respect to China. Former Hong Kong governor Chris Patten, the European Commission's foreign affairs commissioner, however, stressed the importance of taking human rights concerns into consideration in E.U. relations with China, including in the establishment of trade and economic ties. Similarly, the European Parliament linked expansion of the E.U.-India relationship to India's nuclear disarmament, while urging India to ratify the convention against torture, place a moratorium on executions and step up

efforts to abolish the death penalty, foster religious tolerance, and protect religious freedom. The E.U. continued to criticize the Burmese government while attempting, albeit unsuccessfully, to involve the government in a dialogue about human rights. On October 11, the E.U. extended sanctions against Burma for another six months, citing human rights abuses.

In October, the European Council expressed concern about the humanitarian situation in East and West Timor and banned for four months the supply to Indonesia of equipment that might be used for internal repression or terrorism. The E.U. also pressed for peaceful settlements to the conflicts in Kashmir and Afghanistan and advocated the establishment of an international tribunal for Cambodia.

Japan

The Japanese government was noticeably more active at the U.N. Commission on Human Rights than in previous years, taking the initiative, for example, to sponsor a Cambodia resolution, and working to develop a consensus on Burma. On China, Japan caved in to pressure from the Chinese foreign minister not to cosponsor the U.S. resolution, though it opposed a no-action procedural motion by China. In general, with the exception of China's WTO entry, which Japan strongly supported, Japan's relations with China remained tense, and Beijing put on hold the bilateral human rights dialogue with Japan that had begun in 1997.

Japanese diplomacy was highly visible in Southeast Asia. Japan sent observers to Indonesia for the June elections and donated computer equipment to tally the results. Japanese leaders lobbied President Habibie and other officials to end militia violence in East Timor, but stopped short of using Tokyo's huge bilateral Official Development Assistance (ODA) as leverage. Through 1997 Indonesia had received a cumulative total of more than \$13 billion in ODA loans and other assistance.

In Vietnam, Japan continued to focus on economic reform, and did not link any of its ODA to human rights improvements, although Japanese officials did raise some human rights cases. Once again, Japan was Vietnam's largest donor.

Japan also maintained its high level of interest in Cambodia, hosting in February the World Bank's first donor conference since the 1997 coup, and trying to defuse the Khmer Rouge tribunal issue by supporting both U.N. and domestic remedies without providing concrete assistance for either.

Behind the scenes, the Japanese government used its ties to the Burmese government to press for International Committee of the Red Cross access to prisons, implementation of the International Labor Organization's recommendations on forced labor, and the visit by U.N. envoy Alvaro De Soto in mid-October. It took no action to restore suspended ODA to Burma.

Japan continued its assistance to economies suffering from the Asian currency crisis, providing emergency aid in yen loans and grants to Indonesia, Thailand, the Philippines, and South Korea under the so-called "Miyazawa" initiative, named after the former prime minister who formulated Japan's response to the crisis. Together with loans provided as part of the IMF's package of financial aid, Japan gave a total of \$43 billion, the largest contribution of any single donor. Otherwise, whether in Kashmir, India, and Pakistan, or Malaysia, where Japan had particularly close ties, human rights concerns were low on the Japanese government's agenda. The October coup in Pakistan, however, did spark a strong diplomatic response: Prime Minister Obuchi publicly urged the military to "promptly" return to democratic and constitutional rule.

The Work of Human Rights Watch

Enhancing collaboration with Asian NGOs, finding new ways to get international attention to long-standing issues and neglected areas, and responding to the East Timor crisis occupied much of the division's time during the year. The international financial institutions were more a focus of advocacy efforts than ever before.

In India, we continued our partnership with local organizations working on the rights of Dalits ("untouchables"), assisting in their campaign to end caste violence. The launch in April of a Human Rights Watch report on abuses against Dalits gave a major boost to the campaign, and by year's end,

Dalit activists in South Africa, the United States, the United Kingdom, and the Netherlands had joined the effort. At this writing, the report was being translated into eight regional languages in India. In Cambodia, we produced two reports in close collaboration with local human rights defenders. One of them, on official impunity in Cambodia, was released simultaneously in Khmer and English and served as the starting point for a campaign to bring officials responsible for unlawful deaths to justice.

Much of the Asia division's work focused on bringing attention to serious human rights violations in the region that were out of the public eye. Abuses in the area known as "eastern Tibet"-ethnic Tibetan regions of the Chinese provinces of Gansu, Sichuan, Yunnan, and Qinghai-were highlighted in a report in September, and human rights violations associated with communal violence in Ambon and Aceh, Indonesia were addressed in March and May.

The Asia division reached out to regional media in advocacy work, with op-eds appearing in the Asahi Evening News, on Japan's policy toward Indonesia and East Timor, and in the English-language Phnom Penh Post, as well as the leading Khmer language daily on accountability for the Khmer Rouge. Our reports on caste violence in India and on impunity in Cambodia, as well as our advocacy work on East Timor were extensively reported in the media in India, Cambodia, and Indonesia respectively.

The work of the Washington, London, and Brussels offices as well as that of the U.N. representative were critical to the division's efforts during the year. In Washington, our work focused on Congress, the executive branch, the World Bank, and foreign embassies. Asia division staff testified or submitted written statements to Congressional hearings: once each on Cambodia and Hong Kong, twice on China, and three times on Indonesia and East Timor. In addition to briefing Congressional staff and arranging for them to meet NGOs from the region, Human Rights Watch facilitated Congressional letters to foreign leaders on key human rights issues in Cambodia, Hong Kong, East Timor, Pakistan, India, and China. We also briefed new U.S. ambassadors to Indonesia and Cambodia, the charge d'affaires to Burma (the highest ranking U.S. official posted there), and the newly appointed U.S. ambassador for religious freedom.

Asia division staff had ongoing contact during the year with the World Bank on human rights concerns across the region, particularly in response to concerns in China, Burma, Cambodia, Indonesia, East Timor, Pakistan, and elsewhere in the region.

Japan was a major focus of advocacy, with a mission to Tokyo and extensive interaction with Japanese embassy officials in Washington throughout the year, as well as contacts with Japanese NGOs, academics, and business people.

The Washington office hosted four Burma roundtables during the year on a range of issues including humanitarian assistance in Burma and the impact of selective purchasing legislation in certain U.S. states.

AFGHANISTAN

Fighting continued in contested areas of Afghanistan, intensifying in midyear as both the Taliban and the United Front launched new offensives in the north. The fighting drove thousands of displaced civilians into Kabul. There was no improvement in the status of women in the parts of the country controlled by the Taliban. After months of negotiations over security for United Nations staff, some expatriate U.N. staff began to return to the country in March. Attacks on Afghan political figures opposed to the Taliban continued in Pakistan.

Human Rights Developments

Fighting continued for control of the central part of the country which had fallen to the Taliban in 1998. On April 21, United Front faction Hizb-i Wahdat took control of Bamiyan city, only to relinquish it after heavy fighting in early May. Following the Hizb-i Wahdat victory, relief workers reported that Hizb-i Wahdat forces had beaten and detained residents suspected of supporting the Taliban, and burned their houses. When Taliban forces retook the city, they reportedly took reprisals

by shooting suspected Hizb-i Wahdat supporters, primarily ethnic Shi'a Hazaras, burning hundreds of homes and deporting men to unknown locations.

In late July, at peace talks held in Tashkent, the Taliban and the United Front agreed to the "Tashkent declaration," which called on all parties to resolve the conflict through "peaceful political negotiation." Almost immediately afterwards, both the Taliban and the United Front resumed fighting, with the Taliban focusing its efforts on United Front Commander Ahmad Shah Massoud's territory north of Kabul. As they pushed north, the Taliban forced civilians from their homes and then set fire to houses and crops, and destroyed irrigation canals and wells, ostensibly to rout opposition sympathizers but effectively preventing the residents' return. In the Shomali region, men believed to be loyal to Massoud were arrested or shot, and women and children were taken by truck to Pakistan or made to walk to Kabul. Some one thousand ethnic Tajik men were reportedly separated from their families during the exodus and held by the Taliban. Over four days in August the U. N. estimated that over twenty thousand people fled to Kabul, bringing the total to close to forty thousand in a two-week period.

The influx of displaced people into Kabul further strained relief efforts in the city. Some 850 families took refuge in the abandoned Soviet diplomatic compound. A further one hundred thousand displaced were thought to have taken refuge in the Massoud-held Panjshir valley, fifteen thousand of them without shelter. In September, officials with the U.N. World Food Programme stated that 145,000 people were at risk of malnutrition in the coming winter.

For much of the year, both the Taliban and the United Front launched mortar and rocket attacks on cities, killing hundreds of civilians. In September Taliban fighter planes bombed Taloqan, the capital of northern Takhar province. Earlier in the year, Massoud's forces fired rockets into Kabul, killing scores of civilians.

Taliban officials continued to beat women on the streets of Kabul for dress code violations and for venturing outside the home without the company of a close male relative. In Kabul, girls were not permitted to attend school, although primary schools for girls were permitted in other parts of the country. Women's employment remained severely restricted and was generally limited to health care. To ensure that religious practices were strictly enforced, Taliban police continued to arrest men for having beards that were too short, for not attending prayers, and for having shops open during scheduled prayer times.

As in previous years, the Taliban enforced its laws according to its interpretation of Islamic Sharia, with weekly public executions, floggings, and amputations in Kabul stadium and other cities under its control. Several men accused of sodomy were punished by having walls pushed on them by a tank. In one case, a man who survived the ordeal after being left under the rubble for two hours was reportedly allowed to go free.

In September, the Taliban issued new decrees aimed at non-Muslims that forbade them from building places of worship but allowed them to worship at existing holy sites, banned non-Muslims from criticizing Muslims, ordered non-Muslims to identify their houses by placing a yellow cloth on their rooftops, forbade non-Muslims from living in the same residence as Muslims, and required that non-Muslim women wear a yellow dress with a special mark so that Muslims could keep their distance.

Defending Human Rights

No human rights organizations operated inside Afghanistan, but several nongovernmental organizations (NGOs) based in Pakistan documented abuses in Taliban-controlled areas. Other humanitarian groups also reported on human rights abuses. A number of women associated with these groups received threats from Taliban soldiers in Pakistan; in some cases, the women were compelled to cease their work and seek asylum outside Pakistan.

The Role of the International Community

Peace talks sponsored by the Group of Six-plus-Two, comprised of Afghanistan's neighbors (Pakistan, China, Tajikistan, Turkmenistan, Iran, and Uzbekistan) plus the United States and Russia, held in

February and March, produced cease-fire agreements but had little effect. The March talks resulted in an agreement by all parties to a shared government, but a meeting to work out the details scheduled for the following month never took place, after the announcement by the Taliban that it would not share power with opposition elements. Talks in July resulted in both sides agreeing to allow humanitarian aid into areas under their control. Most neighboring countries as well as some of the Gulf states continued to provide financial and military support to one or more of the Afghan factions.

Twenty NGOs returned to Kabul in January, after a six-month absence stemming from the Taliban's edict that all aid organizations and employees be housed in a single dilapidated building. The returning groups included MedAir, CARE, and M6decins sans Frontières, who agreed to the move on the condition that the facility be rehabilitated.

The International Committee of the Red Cross (ICRC), which had remained in Kabul throughout the controversy, continued to provide food and assistance to the civilian population. In June, ten ICRC workers were attacked, beaten, and robbed in Taliban-controlled Bamiyan province, despite having permission to travel and safety assurances from Taliban authorities. ICRC staff was reduced for approximately one week until further safety guarantees were obtained from the Taliban.

United Nations

The United Nations Afghanistan seat remained in the control of the government of Jamaat-I Islami leader Burhanuddin Rabbani, who was ousted from Kabul by the Taliban militia in 1996.

U.N. staff began a gradual return to the country in March and April. A team was also sent to the northern city of Mazar-i Sharif to reopen a U.N. office in the city, the first since September 1997, when U.N. offices were raided there during heavy fighting.

The special rapporteur on Afghanistan, Dr. Kamal Hossain, visited the country in March. In April, the United Nations Commission on Human Rights passed a resolution condemning human rights violations by all parties in Afghanistan, citing in particular the mass killings that accompanied the Taliban's taking of Mazar-i Sharif in August 1998 and the continuing violations of women's rights. It also denounced both sides in the conflict for continuing the civil war and urged other nations to refrain from supplying military support to any of the factions. The commission also specifically condemned the Taliban for violations of women's and girls' human rights. The mandate of the special rapporteur on Afghanistan was extended for another year.

Shortly after the start of the Taliban's July offensive, the U.N. Security Council called for an immediate stop to hostilities. Once again, countries were urged not to aid any of the factions militarily. U.N. Secretary-General Kofi Annan implored the Afghan factions to stop their "senseless self-destruction." He criticized all the parties for committing "criminal acts" and then relying on "the U.N. and the international community...to help save their own people from disasters provoked by those who claim to be their country's leaders." He also denounced the use of child soldiers in the conflict.

In August, the U.N. Subcommission on Human Rights adopted a resolution condemning the Taliban for violations of the most fundamental rights of women and girls, stating that Afghan women were "cheated of their rights to health, employment, freedom of movement and security."

In September, U.N. Special Rapporteur for Violence against Women Radhika Coomaraswamy visited Afghanistan. She condemned the Taliban militia for its "widespread systematic violation of the human rights of women." She stated that public beatings of women continued and she urged the Taliban authorities to respect international conventions on human rights and dismantle the Ministry for Promotion of Virtue and Prevention of Vice, the religious police responsible for the beatings.

In January, UNICEF reported that 90 percent of the girls in Afghanistan and 75 percent of the boys were not attending school in Taliban-controlled areas, a drop from previous statistics. In a July UNICEF report on children at risk, Afghanistan ranked behind only Angola and Sierra Leone. The study analyzed environmental conditions, mortality rates, nutrition, primary education, security, and health.

Afghanistan remained one of the most densely mined countries in the world, with approximately six million mines, most of them remnants of the war with the Soviet Union from 1979-1992. In 1999 it was estimated that there were ten to twelve victims of landmines per day in the country, 30 percent of them children and 50 percent of them fatalities due to inadequate or nonexistent medical facilities. In July and August, the U.N. reported that the United Front was laying mines north of Kabul to repulse the Taliban offensive.

The U.N. High Commissioner for Refugees (UNHCR) reported in February that the 2.6 million refugees from Afghanistan living in Pakistan and Iran remained the largest group of refugees in the world. Over two million remained internally displaced due to fighting and forced evictions and relocations. Although some fifteen thousand refugees returned from Iran, and fifty-one thousand from Pakistan during the first half of the year, renewed fighting deterred many from going back.

United States

Due to their harboring of suspected terrorist Osama bin Laden, the Taliban's relations with the U.S. remained strained. Tensions increased in June when the U.S. put bin Laden on the FBI's Ten Most Wanted list and offered a \$5 million reward for his capture. To exert further pressure, the U.S. imposed economic sanctions in July, including a freeze on all property and trade controlled by the Taliban in the U.S. This was extended in August to include the freezing of approximately \$500,000 in assets of Ariana Airlines, the only airline operating in Afghanistan, on the presumption that it could be supplying the Taliban with export goods.

In a statement to the Senate Foreign Relations Committee in April, Assistant Secretary of State for South Asian Affairs Karl Inderfurth stated that U.S. representatives had been meeting with Russian representatives as well as with Afghan King Zahir Shah to discuss means of reaching peaceful settlement in Afghanistan, but that prospects for peace were dim. Listing the areas of concern to the U.S., he cited the threat of terrorism, ongoing narcotics cultivation and export, human rights abuses, treatment of women and girls, and regional instability. Inderfurth reiterated the U.S. goal of a "broad-based, multi-ethnic, representative government" but expressed doubt that the Taliban would accept such a formula and predicted further hostilities.

In August, the State Department announced that it was doubling its resettlement quota of South Asian refugees for the year 2000 from four thousand to eight thousand, specifically to allow more Afghan women into the country. In the announcement the department representative said, "We have seen a sizable increase in the numbers of Afghan women at risk. As President Clinton has made clear, we are deeply opposed to the Taliban regime's repressive policies toward women and we are committed to ensuring that Afghan women in vulnerable circumstances obtain the protection they deserve." In September the U.S. issued a report on religious freedom worldwide in which it accused the Taliban of persecuting and killing minority Shi'as.

Relevant Human Rights Watch Report:

Afghanistan: Massacre at Mazar-i Sharif, 11/98

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